

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SOLANO,

Petitioner

VS.

CARL LEE TURNER JR,

Respondent

) Case Number: FCS-25-357580

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

DE NOVO HEARING SET RE: RESPONDENT'S REQUEST FOR ORDER OF HEARING
NOTICE OF WAGE/EARNING ASSIGNMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are the Department of Child Support Services, Father Carl Lee Turner Jr., and Mother Melinda Dela Cruz. Father and Mother have one minor child, Sanaa (DOB: 3/30/2012).
- 2) The parties formerly had a child support case open in Solano County, which was later transferred to San Francisco County.
- 3) On 5/14/2026, Father filed a Request for Hearing Regarding Earnings Assignment which states the following: (a) the total amount of arrearages claimed as owing is incorrect and (b) the monthly arrearage payment stated in the earnings assignment creates an undue hardship (Father did not state why). Father also requests that child support be terminated “due to 14th Amendment violation and 15 U.S.C.S. 1691(a)(D)(E).”
- 4) The hearing on Father’s Request for Hearing was originally set for 6/3/2026 before Commissioner Rahim in Dept. 414. On that day, Commissioner Rahim issued Findings and

1 Recommendations which continued the hearing to 8/19/2026 in Dept. 414 and ordered Father to
2 file and serve documentation from Solano County Superior Court indicating whether this motion
3 should be heard by Solano County or San Francisco County.

- 4 5) On 6/17/2026, Judge Wiley confirmed Commissioner Rahim's Findings and Recommendations
5 issued 6/3/2026 as an order of the Court because no objection was filed within 10 court days.
- 6 6) On 8/19/2026, Father, Mother, and Department of Child Support Services attorney Paul
7 Spraggins appeared in Dept. 414 and made argument. On that day, Commissioner Rahim issued
8 Findings and Recommendations denying the requests set forth in Father's 5/14/2026 Request for
9 Hearing Regarding Earnings Assignment. Commissioner Rahim noted that Father argued that he
10 was not given sufficient opportunity to present his financial information before Solano County
11 made the child support orders that Father now challenges. Commissioner Rahim made the
12 following findings: "The record reflects that Respondent was present at the 5/12/2023 hearing,
13 where the matter was continued to allow him to provide the requested financial documentation.
14 Despite being aware of the continued hearing date, Respondent failed to provide the
15 documentation and did not appear at the subsequent hearing. More importantly, Respondent
16 acknowledges that he previously sought the same relief in Solano County Superior Court,
17 wherein his request was denied with prejudice on 12/9/2024. Respondent did not seek
18 reconsideration or appeal that ruling. His present request is therefore untimely and constitutes an
19 improper attempt to relitigate matters that have already been adjudicated. Respondent's assertion
20 that he now has additional case law does not provide a basis to reopen or relitigate the prior
21 determination. Accordingly, the court finds that Respondent's present claims are barred by prior
22 adjudication and should be denied.... Accordingly, the court should decline to set aside or
23 invalidate the underlying support orders, dismiss the arrearages, terminate or invalidate the
24 enforcement actions, or grant Respondent's requested relief regarding his passport, credit
25 reporting, or other enforcement remedies."
- 26 7) On 8/25/2026, Father filed a Notice of Objection to Commissioner Rahim's 8/19/2026 Findings
27 and Recommendations.
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1 8) On 8/26/2026, Judge Wiley issued a Review of Commissioner's Findings of Fact and
2 Recommendation and set a de novo hearing on 9/10/2026 in Dept. 404. Judge Wiley's notice was
3 mailed to each party that same day, along with a copy of the Tentative Ruling Instructions.

4 **B. Findings and Order**

- 5 1) It appears undisputed that Father was present at the 5/12/2023 hearing in Solano County, the
6 matter was continued to allow Father to provide the requested financial documentation, Father
7 failed to provide the financial documentation prior to the hearing, and Father did not appear at the
8 hearing at which the underlying child support order was made. It also appears undisputed that
9 Father has already sought the relief he is now seeking in Solano County Superior Court, wherein
10 his request was denied with prejudice on 12/9/2024.
- 11 2) The Court therefore finds that this is an improper attempt by Father to relitigate matters that have
12 already been adjudicated. The relief requested in Father's Request for Hearing Regarding
13 Earnings Assignment filed 5/14/2026 is denied.
- 14 3) The Court will prepare the Findings and Order After Hearing.
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